

25STCV25900 25STCV25900

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-06-23

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Case Number: 25STCV25900 Hearing Date: June 23, 2026 Dept: 300

CASE NUMBER: 25STCV25900

CASE NAME: Jose Manuel Dulanto vs. Archbishop William

E. Lori, et al.

TYPE OF MOTION: (1) Motion for Monetary Sanctions Against Defendants

Michael Linfield, Terry Green, Natalie Stone, Gonzalo Martinez, Elwood Lui,

David Slayton, Eva McClintock, and Counsels Sarah Overton, Paul Lin, Cummings, McClorey,

Davis Acho & Associates, P.C.

(2)

Motion for Sanctions Against Defendants David Simpson, Steve Owens, and Simpson

Employment Law, APC.

FILING PARTY: (1)-(2) Plaintiff Jose

Manuel Dulanto

RESPONDING

PARTY: (1) Defendants the Honorable

Elwood Lui, Administrative Presiding Justice of the California Court of Appeal,
Second Appellate District; the Honorable Gonzalo C. Martinez, Presiding Justice
of the California Court of Appeal, Second Appellate District, Division Seven;
the Honorable Natalie P. Stone, Associate Justice of the California Court of
Appeal, Second District, Division Seven; the Honorable Terry Green and the
Honorable Michael P. Linfield, Judges of the Superior Court of California,
County of Los Angeles (Ret.); Eva McClintock, Clerk/Executive Officer of the
California Court of Appeal, Second Appellate District; and David W. Slayton,
Court Executive Officer and Clerk of the Superior Court of California, County
of Los Angeles (collectively, Judicial Defendants).

(2)

David Simpson, Steve Owens, and Simpson Employment Law, APC (collectively,
Owens Defendants).

HEARING DATE: June 23, 2026

Case Background

This is an action arising from Plaintiff Jose Manuel
Dulanto's (Plaintiff) prior employment with the Knights of Columbus,
Plaintiff's subsequent lawsuits against Knights of Columbus, Case Nos. BC568311
and BC656164, and the subsequent appeals. Plaintiff brought this action against
his prior employer, their defense counsel, and various judges and court

personnel involved in the prior lawsuits.

On September 4, 2025, Plaintiff, in pro per, filed a

complaint against Defendants Archbishop William E. Lori; David B. Simpson;

Knights of Columbus; Steve Owens; Jennifer M. Fontaine; Aaron A. Buckley;

Michael P. Linfield; Terry Green; Natalie P. Stone; Gonzalo C. Martinez; Elwood

Lui; David W. Slayton; Eva McClintock; Wolfflick, Simpson, Kachaturian &

Bouayad; Simpson Employment Law APC; Paul-Plevin-Sullivan-&-Connaughton

LLP; Quarles & Brady LLP; and DOES 1 through 10 asserting causes of action

for: (1) Fraud Upon the Court; (2) Coercion; (3) Breach of the Existing Implied

in Fact Contract of Employment; (4) Non Payment of Wages; (5) Failure to

Compensate for All Hours Worked; (6) Failure to Maintain Required Records; (7)

Violation of California Business and Professions Code; (8) Unjust Enrichment;

and (9) Unjust Enrichment.

On April 27 and 29, 2026, Plaintiff filed the instant

motion for sanctions.

On June 4, 2026, the Owens Defendants filed an

opposition.

On June 10, 2026, the Judicial Defendants filed an

opposition.

No reply has been filed as to either opposition.

Motions (1)-(2)

Plaintiff moves the Court, pursuant to Code of Civil

Procedure section 177.5 and California Rules of Court, rule 2.30, for an

ordering imposing sanctions against the Judicial Defendants and the Owens

Defendants.

Decision

The motions are DENIED.

Discussion

Plaintiff moves the Court, pursuant to Code of Civil

Procedure section 177.5 and California Rules of Court, rule 2.30, for an

ordering imposing sanctions against the Judicial Defendants and the Owens

Defendants (collectively, Defendants).

Plaintiff moves for an order imposing sanctions on the

grounds that Defendants illegally changed the date on the hearing of their

demurrer without obtaining Court approval and contrary to the Court's March 9,

2026, order.

Under California Rules of Court, Rule 2.30 courts may

impose monetary sanctions for violations of the Rules of Court. (See Cal. Rules

of Court, rule 2.30.) "Sanctions must not be imposed under this rule except on

notice motion by the party seeking sanctions or on the court's own motion after

the court has provided notice and an opportunity to be heard. A party's motion for sanctions must (1) state the applicable rule that has been violated, (2) describe the specific conduct that is alleged to have violated the rule, and (3) identify the attorney, law firm, party, witness, or other person against whom sanctions are sought." (Cal. Rules of Court, rule 2.30(c).)

Here, Plaintiff fails to identify any rule or court allegedly violated by Defendants.

As such, the Court finds that an imposition of sanctions under California Rule of Court, Rule 2.30 is unwarranted.

Code of Civil Procedure section 177.5 provides that

"[a] judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any violation of a lawful court order by a person, done without good cause or substantial justification."

(Code Civ. Proc., § 177.5.)

Here, Code of Civil Procedure section 177.5 is inapplicable because Defendants have not violated a court order. Accordingly, the imposition of sanctions under Code of Civil Procedure section 177.5 is unwarranted.

Conclusion

Based on the foregoing, the motions are DENIED